

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erin Sweeney	Team: Squad #08	CCRB Case #: 201502088	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Sunday, 03/22/2015 4:15 AM	Location of Incident: § 87(2)(b) 122nd Precinct stationhouse	18 Mo. SOL 9/22/2016	Precinct: 122		
Date/Time CV Reported Sun, 03/22/2015 8:41 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Sun, 03/22/2015 8:41 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Ramirez	20138	929005	122 PCT
2. POM Anthony Largo	2987	956036	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anthony Robles	02651	953324	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Ramirez	Force: At § 87(2)(b) and the 122nd Precinct stationhouse in Staten Island, PO Robert Ramirez used physical force against § 87(2)(b)	A . Unsubstantiated
B . POM Robert Ramirez	Discourtesy: At § 87(2)(b) in Staten Island, PO Robert Ramirez spoke rudely to § 87(2)(b)	B . Unfounded
C . POM Robert Ramirez	Abuse: At § 87(2)(b) in Staten Island, PO Robert Ramirez refused to provide his name to § 87(2)(b) and § 87(2)(b)	C . Substantiated
D . POM Robert Ramirez	Force: At § 87(2)(b) in Staten Island, PO Robert Ramirez used physical force against § 87(2)(b)	D . Exonerated
E . POM Anthony Largo	Force: At § 87(2)(b) in Staten Island, PO Anthony Largo used physical force against § 87(2)(b)	E . Exonerated
F . POM Anthony Largo	Force: At § 87(2)(b) and on the way to the 122nd Precinct stationhouse in Staten Island, PO Anthony Largo used physical force against § 87(2)(b)	F . Unsubstantiated
G . POM Anthony Largo	Abuse: On the way to the 122nd Precinct stationhouse, PO Anthony Largo refused to provide his name and shield number to § 87(2)(b)	G . Unsubstantiated
H . POM Anthony Largo	Discourtesy: On the way to the 122nd Precinct stationhouse, PO Anthony Largo spoke rudely to § 87(2)(b)	H . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
I . POM Robert Ramirez	Off. Language: On the way to the 122nd Precinct stationhouse, PO Robert Ramirez made remarks to § 87(2)(b) based upon sex.	I . Unsubstantiated

Case Summary

On March 22, 2015, at approximately 4:15 a.m., in front of § 87(2)(b) in Staten Island, § 87(2)(b) awoke to screaming outside of his window. He thought that the people, identified as § 87(2)(b) and § 87(2)(b) were intoxicated and were having an argument. He called 911 because it was late and it was clear that the people screaming were not going to quiet down. While he was still on the phone, he went outside, and told 911 that § 87(2)(b) § 87(2)(b) swung at him (enc. 13A). The officers arrived and placed § 87(2)(b) and § 87(2)(b) in handcuffs, and they were taken to the 122nd Precinct stationhouse.

§ 87(2)(b) alleged the following: PO Robert Ramirez handcuffed her and then dropped her to the ground (**Allegation A**). § 87(2)(b) repeatedly asked why she was arrested, and PO Ramirez told her to “shut the fuck up” (**Allegation B**). § 87(2)(b) asked PO Ramirez for his name, and he replied that it “was none of her business” (**Allegation C**). PO Ramirez and other officers tackled § 87(2)(b) (**Allegations D and E**) and PO Ramirez punched him in the face (subsumed in **Allegation D**). § 87(2)(b) responded to this by standing up, and PO Largo tripped her and brought her to the ground (**Allegation F**). In the car on the way to the stationhouse, § 87(2)(b) § 87(2)(b) asked PO Largo for his name and shield number, and he said, “Don’t worry about it,” and never provided that information (**Allegation G**). He also told her to “shut the fuck up” (**Allegation H**). At the stationhouse, PO Ramirez pulled § 87(2)(b) out of the vehicle and punched her in the face (subsumed in **Allegation A**). § 87(2)(b) asked PO Ramirez why she was getting arrested, and he responded “because you are a ratchet cunt” (**Allegation I**).

Mediation, Civil and Criminal Histories

- This complaint was not eligible for mediation § 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- A FOIL request on June 18, 2015, revealed that no Notice of Claim had been filed in regard to this incident (enc. 17A).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- PO Ramirez has been a Member of Service for 13 years and has 27 previous allegations, three of which are substantiated. In case 200307307, force and discourtesy were alleged, and the case was closed as complainant uncooperative. In case 200308667, force and discourtesy were alleged, and the case was closed as complainant unavailable. In case 200809777, discourtesy was alleged, and the case was closed as complainant uncooperative. In case 201112020, discourtesy was alleged, and it was substantiated, but no disciplinary action was taken because the statute of limitations had expired. In case 201113677, discourtesy was alleged, and the case was closed as complainant uncooperative. In case 201304583, force was alleged, and it was unsubstantiated. Two discourtesy allegations were also made in that case, and one was closed as complainant uncooperative while the other was unsubstantiated. In case 201408942, two allegations of physical force were made against PO Ramirez, and one was exonerated, while the other was unsubstantiated. In that case, the allegation that PO Ramirez refused to provide his name and shield number was unsubstantiated (enc. 2A-2B).
- PO Largo has been a Member of Service for one year and has no previous CCRB complaints (enc. 2C).

- This is § 87(2)(b) s, § 87(2)(b) s, and § 87(2)(b) first CCRB complaint (enc. 2D-2F).

Findings and Recommendations

Explanation of Subject Officer Identification:

- **Allegation E** is pled against PO Largo because he acknowledged being involved in tackling § 87(2)(b) (enc. 12F-12G).
- **Allegations F, G, and H** are pled against PO Largo because § 87(2)(b) described an officer who was a white male in his 30s who stood 5'5" tall, was slightly heavy, and had brown hair (enc. 4E). PO Largo is a § 87(2)(b) old white male who stands § 87(2)(b), with brown hair and brown eyes (enc. 12D). § 87(2)(b) also said that this officer was in the back seat with her on the way to the stationhouse in PO Ramirez's vehicle. PO Largo was PO Ramirez's partner and acknowledged riding in the backseat with § 87(2)(b) (enc. 12D-12G).

Allegations not Pledged:

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A—Force: At § 87(2)(b) and the 122nd Precinct stationhouse in Staten Island, PO Robert Ramirez used physical force against § 87(2)(b)

§ 87(2)(b) stated that PO Ramirez exited his vehicle and immediately placed § 87(2)(b) in handcuffs (enc. 4B-4E). § 87(2)(b) was holding § 87(2)(b) back to prevent him from hitting the neighbor, § 87(2)(b). PO Ramirez pulled her off of § 87(2)(b) placed her against his vehicle, and put one of her hands in handcuffs. She did not tense or move her arms in any way. PO Ramirez dropped her to the ground and she landed on her stomach. PO Ramirez placed the other cuff on her wrist. While she was still on her stomach, PO Ramirez grabbed her ankles, lifted her legs to the approximate height of her knees, and dragged her approximately one foot toward the curb. She sustained scrapes on her chin. Later, when she was taken to the 122nd Precinct stationhouse, she stated that PO Ramirez opened the car door, grabbed her upper arms, and pulled her halfway out of the vehicle. He hit her in the mouth once with a closed fist. She fell out of the vehicle and landed on her left shoulder. Her mouth was swollen and she was bleeding down her sweater. She sustained swelling and bruising from the middle of her chin up to her top lip, a cut from her bottom lip to her top lip, and a cut on the inside of her bottom lip. She provided photos of her injuries that were taken the day of her release (enc. 4J-4N). In her arrest photo, a laceration to her chin is visible (enc. 4E). She did not receive medical treatment for these injuries, and did not have any injuries before the incident. § 87(2)(b) stated that she did not consume any alcohol or drugs, and § 87(2)(b) was not intoxicated. She never kicked a police vehicle or spat at an officer.

§ 87(2)(b) stated that PO Ramirez applied pressure to § 87(2)(b)'s back to hold her down on the ground while a white officer (he was unsure which one) handcuffed her (enc. 5B-5D). § 87(2)(b) and § 87(2)(b) went in separate vehicles, and PO Ramirez was in the passenger seat of the vehicle in which § 87(2)(b) was transported. In the stationhouse parking lot, § 87(2)(b) saw PO Ramirez partially remove § 87(2)(b) from the right side of the vehicle

and hit her in the face. He could not see if he used a closed or open fist. § 87(2)(b) saw § 87(2)(b) inside the stationhouse. Her lip was swollen and she was bleeding from both inside and outside of her mouth.

§ 87(2)(b) § 87(2)(b)'s friend, witnessed the incident in front of § 87(2)(b). § 87(2)(b) stated that both § 87(2)(b) and § 87(2)(b) were intoxicated, then clarified that "at least" § 87(2)(b) was intoxicated (enc. 6B-6C). She did not know how many drinks § 87(2)(b) and § 87(2)(b) had consumed that evening. § 87(2)(b) attempted to lunge at § 87(2)(b) and § 87(2)(b) held him back by his waist. § 87(2)(b) was placed in handcuffs, but § 87(2)(b) could not recall the events that led up to her arrest. § 87(2)(b) was seated on the curb, and kept standing and yelling about being arrested. The officers told her to sit down several times, and she did not comply. The officers said, "If you're not going to sit down, we're going to place you on the car." They placed § 87(2)(b) against the car. § 87(2)(b) looked away to watch what was happening to § 87(2)(b) and when she looked back, § 87(2)(b) was on the ground. An officer identified as PO Ramirez was asking § 87(2)(b) her name, and she was crying and yelling her name. She was on her stomach. PO Ramirez was pulling § 87(2)(b) by her handcuffs, but her body did not leave the ground. § 87(2)(b) said, "You can't do that to her. I want her to be picked up." PO Ramirez and a white officer picked up § 87(2)(b) by pulling her handcuffs and reaching underneath her arms and shoulders. They then sat § 87(2)(b) on the curb before she was placed in a vehicle and taken to the stationhouse.

§ 87(2)(b) the neighbor who called 911, stated that § 87(2)(b) was trying to fight him, and § 87(2)(b) father had to hold back § 87(2)(b) (enc. 7B-7D). § 87(2)(b) lives below § 87(2)(b) father, and saw § 87(2)(b) and § 87(2)(b) once before. On that date, approximately one month before this incident, § 87(2)(b) and § 87(2)(b) were yelling outside of his door. § 87(2)(b) asked them to be quiet, and they went inside the upstairs apartment. § 87(2)(b) described his relationship with § 87(2)(b) father as "friendly" and like a "typical neighbor relationship," but they "do not hang out, or anything." When the officers arrived on the date of the incident, § 87(2)(b) put her face within three inches of an officer's face and said, "What are you going to do? You can't do anything to me!" and other "typical drunken talk." Officers told her to calm down and to step back, and she did not comply. The officers did not seem agitated or threatened by the female. An officer identified as PO Robles grabbed her left hand, pushed her against the police vehicle, and placed her in handcuffs. § 87(2)(b) continued to resist and move her body. It took the officer approximately 30 seconds to one minute to place § 87(2)(b) in handcuffs. § 87(2)(b) spat at § 87(2)(b) cursed at the officers, and kicked the police vehicle. An officer identified as PO Ramirez grabbed her cuffs and pushed her to the ground. She landed on her stomach, and § 87(2)(b) did not see her face hit the ground. § 87(2)(b) could not say how strong the push was, but it was enough to keep her on the ground. PO Ramirez did not place a knee on § 87(2)(b)'s back. § 87(2)(b) did not see any injuries on § 87(2)(b). He thought the officers used a necessary amount of force to control her. § 87(2)(b) did not see how § 87(2)(b) was handcuffed (enc. 8B-8C). She saw her on the ground, but she did not know how she came to be on the ground.

PO Robles, § 87(2)(b)'s arresting officer, wrote in § 87(2)(b)'s arrest report that she "§ 87(2)(a) 160.50" (enc. 10M) PO Robles stated that § 87(2)(b) kept "getting in his face" after he repeatedly told her to sit on the curb (enc. 10X-10Z). PO Robles handcuffed § 87(2)(b) which took one or two minutes because she moved her arms and tensed her shoulders. § 87(2)(b) was standing and not leaning against a vehicle when she was handcuffed. PO Robles could not recall if § 87(2)(b) was placed on the ground at any point. He did not drag § 87(2)(b) and he never saw another officer do this. PO Ramirez was not involved in § 87(2)(b)'s handcuffing because he was apprehending § 87(2)(b).

§ 87(2)(b) PO Robles did not see PO Ramirez or § 87(2)(b) in the stationhouse parking lot. He never saw PO Ramirez punch § 87(2)(b) and he never heard her complain about this. PO Robles did not notice any injuries on § 87(2)(b) § 87(2)(b) was complaining about a laceration to her lip, but PO Robles did not know how she sustained this laceration. EMS came to the stationhouse, but EMS told PO Robles that she denied medical treatment.

PO Ramirez stated that as soon as he arrived at the scene, he saw § 87(2)(b) punching an officer from the 120th Precinct whom he did not know (enc. 11E-11G). After § 87(2)(b) was placed in handcuffs, he went to help out the officers who were having trouble restraining § 87(2)(b) § 87(2)(b) was already in handcuffs. She was jumping on the officers' vehicle and tried to kick the windshield. PO Ramirez told the officers to put her on the ground. PO Ramirez touched her handcuffs, and another officer (he could not recall which one) touched her handcuffs or her arms to bring her off the hood of the car. She was placed on her stomach. She stopped moving once she was on the ground. This was the only time § 87(2)(b) was on the ground. PO Ramirez never dragged her, and he never saw another officer do this. PO Ramirez lifted her up and placed her in his vehicle. When they arrived at the stationhouse, § 87(2)(b) exited the vehicle herself, and PO Ramirez never reached inside to pull her out of the vehicle. He denied punching her. § 87(2)(b) never complained about her injuries. PO Ramirez was shown a photo of § 87(2)(b)'s injuries, and he stated that he did not recall seeing them, and had no idea how she sustained them. He never learned if she received medical treatment.

PO Largo stated that when he first saw § 87(2)(b) she was climbing the police vehicle and screaming (enc. 12F-12G). PO Largo was still with § 87(2)(b) approximately twenty feet away from § 87(2)(b) when he saw her. PO Largo saw two officers from the 122nd Precinct "toss her down" by grabbing underneath her arms and bringing her to the ground. PO Ramirez was not involved in bringing § 87(2)(b) to the ground, and he never saw PO Ramirez speak to the female. PO Largo added that he was dealing with § 87(2)(b) and might have missed PO Ramirez interacting with the female. PO Largo corroborated PO Ramirez's statement that § 87(2)(b) exited the vehicle on her own, and that PO Ramirez did not punch her.

§ 87(2)(g)

It is therefore recommended that
Allegation A be Unsubstantiated.

Allegation B—Discourtesy: At § 87(2)(b) in Staten Island, PO Robert Ramirez spoke rudely to § 87(2)(b)

§ 87(2)(b) stated that she repeatedly asked PO Ramirez why she was arrested, and PO Ramirez told her to "shut the fuck up."

§ 87(2)(b) and § 87(2)(b) did not state that they heard PO Ramirez say, "Shut the fuck up," or anything similar. § 87(2)(b) and § 87(2)(b) did not hear any officer use any profanity.

PO Ramirez and other officers told § 87(2)(b) to be quiet, but she did not listen. PO Ramirez denied telling her to "shut the fuck up," and did not use any profanity. PO Largo corroborated this.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **Unfounded**.

Allegation C—Abuse: At § 87(2)(b) in Staten Island, PO Robert Ramirez refused to provide his name to § 87(2)(b) and § 87(2)(b)

After she was handcuffed and was on the ground, § 87(2)(b) stated that she asked PO Ramirez for his name, and he said, “It’s none of your business.” § 87(2)(b) stated that after § 87(2)(b) was taken to the ground, he asked PO Ramirez for his name, and PO Ramirez did not provide it. § 87(2)(b) yelled, “I want your names, badge numbers, and to speak to your captain,” when the officers climbed on top of § 87(2)(b). § 87(2)(b) saw officers cover their shields.

§ 87(2)(b) did not allege that PO Ramirez did not provide him his name. § 87(2)(b) and § 87(2)(b) did not mention that § 87(2)(b) asked for any of the officers’ names, or that any officers refused to provide their names to her.

§ 87(2)(b) stated that he heard § 87(2)(b) say she wanted “all your badge numbers,” and that she directed this toward all of the officers on scene. § 87(2)(b) could not recall the officers giving any response to this. § 87(2)(b) did not think it was the opportune time for the officers to give her their information. The officers were still trying to control the situation, and § 87(2)(b) would not have remembered their information anyway. § 87(2)(b) continued to ask for their shield numbers throughout the incident. § 87(2)(b) never saw officers cover their shields. § 87(2)(b) corroborated § 87(2)(b)’s statement, but added that she heard an officer (she could not recall which one) say, “You can get that (referring to his shield number) later.” She never heard an officer provide his name or shield number, and she never saw an officer cover his shield.

PO Robles denied hearing § 87(2)(b) ask for his name and shield number, and he never heard her ask another officer this. PO Largo corroborated this. PO Robles never refused to provide her his name and shield number, and he told her his name when he walked her inside of the stationhouse because he was her arresting officer. He never heard another officer provide § 87(2)(b) with their information.

PO Ramirez stated that § 87(2)(b) asked him for his name and shield number when they were at the stationhouse, and he provided it. He never heard her ask for any other officer’s information, and could not recall if § 87(2)(b) said anything like “I want all of your names and badge numbers” at the scene. He never refused to provide her with his information.

Patrol Guide procedure 203-09 states that officers should courteously and clearly state their name and shield number to anyone who requests that information (enc. 1A).

§ 87(2)(b) and § 87(2)(b) corroborated § 87(2)(b)’s statement that she repeatedly asked for officers’ names and shield numbers, and that no officer provided them. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegation C** be closed as **Substantiated**.

Allegation D—Force: At § 87(2)(b) in Staten Island, PO Robert Ramirez used physical force against § 87(2)(b)

Allegation E—Force: At § 87(2)(b) in Staten Island, PO Anthony Largo used physical force against § 87(2)(b)

§ 87(2)(b) stated that approximately 10 to 15 minutes after the officers first arrived, two or three officers tackled him. The officers gave him no commands before they did this. He was handcuffed and asked why he was being arrested. § 87(2)(b) asked if the officers were going to choke him like they choked Eric Garner. He also called the officers pigs and told them that they had nothing else to do on Staten Island. PO Ramirez, whose name he learned by reading his shield on his shirt, was coming toward him. PO Ramirez jumped on top of § 87(2)(b) and hit him approximately five or six times in the right side of his head with a closed fist. The hits were to his head, and not his face, because he moved his head downward to protect his face. He sustained bruises to his “skull” and scratches on his forehead. While he was being hit, § 87(2)(b) tried to move away from him by twisting and turning his body, but was unsuccessful because PO Ramirez and two or three additional officers were on top of him. He never hit or made contact with any officers while he was moving, and he never intended to do so. In his arrest photograph, a laceration is visible on his forehead (enc. 5E).

§ 87(2)(b) stated that approximately five minutes after she was placed in handcuffs, officers, including PO Ramirez, tackled § 87(2)(b). After § 87(2)(b) was on the ground, PO Ramirez placed one knee on each side of § 87(2)(b) hips. PO Ramirez hit him in the face with his closed right fist four or five times in a row. § 87(2)(b) responded to this by crying, screaming, and asking PO Ramirez for his name. PO Ramirez did not provide his name (subsumed in Allegation C).

§ 87(2)(b) stated that § 87(2)(b) was arrested approximately ten minutes after § 87(2)(b) but § 87(2)(b) did not know why he was placed in handcuffs. Two-to-four officers tackled § 87(2)(b) and they fell through the bushes. She thought the tackle and the struggle following the tackle lasted three to five minutes. She could not see how they touched him or how they brought him to the ground.

§ 87(2)(b) stated that he did not see the officers tackle § 87(2)(b) because he was watching what was happening with § 87(2)(b). He turned his head in § 87(2)(b) direction when he heard “bodies tumbling” and saw three officers and the male go through the bushes. The officers heard the male cursing, screaming, and yelling at the officers in response. It took the officers a few minutes to place him in handcuffs, but § 87(2)(b) did not see who did this or how. § 87(2)(b) did not see an officer punch § 87(2)(b). § 87(2)(b) did not see any injured officers or civilians.

§ 87(2)(b) stated that § 87(2)(b) initially seemed calmer than § 87(2)(b). Suddenly, he “snapped” and tried to swing at an officer. Three officers “hugged” § 87(2)(b) and he fell into the bushes. Three officers held down § 87(2)(b). § 87(2)(b) could not see what happened on the ground because the officers were too far from where she was, and it was dark. § 87(2)(b) never saw an officer punch § 87(2)(b). When § 87(2)(b) stood up, he was handcuffed. She did not see any injuries on him.

PO Robles was apprehending § 87(2)(b) when § 87(2)(b) was handcuffed, and he never saw officers tackle § 87(2)(b) or punch § 87(2)(b).

PO Ramirez stated that § 87(2)(b) punched the officer four or five times in the face. The officer was running backwards and had his hands up to protect himself. PO Ramirez, who was approximately twenty feet away from § 87(2)(b), stopped his vehicle, exited, and tackled § 87(2)(b). PO Ramirez, PO Largo, and the officer who was being punched attempted to handcuff § 87(2)(b). § 87(2)(b) grabbed the officer he had punched, placed him in a bear hug, and kicked him in the back. § 87(2)(b) and the officer he was kicking were both on the

ground. § 87(2)(b) was trying to bite the officer. PO Ramirez punched § 87(2)(b) in his side with his right hand in a closed fist two or three times. PO Ramirez punched him because he wanted § 87(2)(b) off of the officer he was kicking. He punched him in the side because that was the only part of his body he was able to access. § 87(2)(b) let go of the officer to protect himself from PO Ramirez's punches, and PO Ramirez and PO Largo were able to grab his hand and roll him onto his stomach. § 87(2)(b) continued to resist, but the officers were able to handcuff him in approximately two minutes. PO Ramirez never punched § 87(2)(b) in the face. He did not recall seeing any injuries on § 87(2)(b) and his arrest photo did not prompt his recollection. He did not know how § 87(2)(b) could have sustained any injury, and never learned if he received medical treatment.

PO Largo corroborated PO Ramirez's testimony that they arrived on the scene and saw § 87(2)(b) punching an officer. PO Largo and PO Ramirez tackled § 87(2)(b). In approximately 30 seconds, PO Largo was able to pull § 87(2)(b) right arm around, and another officer (he was uncertain which one) was able to handcuff him. No additional force was required to place § 87(2)(b) in handcuffs. No officer punched § 87(2)(b).

Patrol Guide procedure 203-11 states that officers must use the minimum force necessary to effect an arrest (enc. 1B-1C).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegations D and E be Exonerated.**

Allegation F—Force: At § 87(2)(b) and on the way to the 122nd Precinct stationhouse in Staten Island, PO Anthony Largo used physical force against § 87(2)(b)

§ 87(2)(b) stated that she responded to the officers tackling § 87(2)(b) by standing up straight and yelling. PO Largo tried to bring her back to the hood of the car by grabbing her handcuffs and pushing the top of her back toward the ground. § 87(2)(b) tensed her body, and PO Largo tripped her by placing his foot in front of her ankles. She landed on her stomach. In the car on the way to the 122nd Precinct stationhouse, § 87(2)(b) stated that PO Largo pushed her down on her left side by holding her hair and placing his body weight on top of her. § 87(2)(b) continued to ask why she was arrested. She told PO Largo to get off of her. She never spat at or tried to bite an officer. § 87(2)(b) said that she could not breathe, and PO Largo shifted his body weight so that she could move. She estimated that PO Largo was on top of her for five or ten minutes.

§ 87(2)(b) stated that when the officers piled on § 87(2)(b) § 87(2)(b) said things such as, "Why are you arresting him?" and "You pigs!" § 87(2)(b) moved toward § 87(2)(b) but did not get closer than ten feet from him, because a white male officer held her back. The white male officer held her back by "hugging" her and preventing her from moving forward. The officer hugged her for two or three minutes, and § 87(2)(b) "continued to run her mouth." After § 87(2)(b) was placed against the vehicle, the officers "went after" § 87(2)(b) because she was "running her mouth." The same officer who hugged her brought her to the ground, and she landed face-down. Another white officer handcuffed her. She was approximately ten feet away from § 87(2)(b) when she was placed in handcuffs.

§ 87(2)(b) stated that she saw § 87(2)(b) on the ground, and that § 87(2)(b) appeared to be in pain. § 87(2)(b) did not see how § 87(2)(b) came to be on the ground because she was watching the officers tackle § 87(2)(b).

§ 87(2)(b) stated that he saw an officer identified as PO Robles handcuff § 87(2)(b) and after § 87(2)(b) was handcuffed, PO Ramirez pushed her onto her stomach when she tried to stand up from the curb. § 87(2)(b) saw § 87(2)(b) on the ground, but she did not see how she came to be on the ground. They did not see any injuries on § 87(2)(b).

PO Largo never tripped § 87(2)(b) to bring her to the ground, and he never saw another officer do this. PO Largo was standing with § 87(2)(b) while two officers (he did not know which ones, as they were not from his Precinct) brought § 87(2)(b) to the ground. In the vehicle, § 87(2)(b) was yelling and screaming, and the officers were ignoring her. She spat on PO Ramirez's head and PO Largo's hand. She was not kicking her legs or doing anything else with her body. PO Largo turned her toward the back left window so that her spit would not land on the officers again. He did this by touching her right shoulder and pushing it toward the door. She responded by continuing to yell. PO Largo never had to use his body to make her stop moving, and he never put a large portion of his body on top of her. She never told him that she could not breathe.

PO Ramirez stated that besides when she was taken to the ground after she was lifted off of the vehicle, § 87(2)(b) was never on the ground. PO Ramirez did not trip her to bring her to the ground, and he never saw another officer do this. In the vehicle, PO Largo held § 87(2)(b) against the door to prevent her from spitting at PO Ramirez. PO Largo never held down § 87(2)(b) by placing a large portion of his body on top of her.

PO Robles could not recall if § 87(2)(b) was ever placed on the ground at any point.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **Unsubstantiated**.

Allegation G—Force: On the way to the 122nd Precinct stationhouse, PO Anthony Largo refused to provide his name and shield number to § 87(2)(b)

Allegation H—Discourtesy: On the way to the 122nd Precinct stationhouse, PO Anthony Largo spoke rudely to § 87(2)(b)

§ 87(2)(b) stated that on the way to the 122nd Precinct stationhouse, she asked PO Largo for his name and shield number, and PO Largo said, "Don't worry about it." § 87(2)(b) did not give PO Largo's name when she provided her testimony. PO Largo told § 87(2)(b) to "shut the fuck up," in the car.

PO Largo stated that § 87(2)(b) never asked for his name or shield number, and he never refused to provide that information. He told § 87(2)(b) to calm down, but he never told her to "shut the fuck up."

PO Ramirez denied hearing § 87(2)(b) ask for any other officer's information, and never heard an officer refuse to provide her with his information. He never heard another officer tell § 87(2)(b) to "shut the fuck up."

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegations G and H** be closed as **Unsubstantiated**.

Allegation I—Offensive Language: At § 87(2)(b) and the 122nd Precinct stationhouse in Staten Island, PO Robert Ramirez made remarks to § 87(2)(b) based upon sex.

Before they stopped the car at the stationhouse, § 87(2)(b) asked again why she was arrested, and PO Ramirez responded, “Because you are a ratchet cunt.” § 87(2)(b) did not allege he called her a “cunt” at any other time.

§ 87(2)(b) said he heard PO Ramirez say, “Shut up; you’re a cunt,” after she was handcuffed at the scene. In the stationhouse parking lot, before he punched § 87(2)(b) PO Ramirez said, “The reason I am arresting you is because you are a cunt,” or something similar.

§ 87(2)(b) and § 87(2)(b) never heard an officer call § 87(2)(b) a “cunt,” at the scene, but it is not clear if they were in a position to hear.

PO Ramirez stated that he did not respond to § 87(2)(b)’s name-calling in any way. He never called her a “cunt” or a “ratchet cunt.” PO Largo never heard PO Ramirez call her a “cunt” or any name.

§ 87(2)(g)

It is therefore recommended that

Allegation I be closed as **Unsubstantiated**.

Pod: 8

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date